

Otherwise, Oracle can make a dispositive motion in due course if discovery reveals that KoolGyrl Products is a business entity that entered into the subject agreement.

Disposition

The Court finds and orders as follows:

1. The Demurrer is OVERRULED.
2. Oracle's responsive pleading shall be filed and served within **ten (10) days** of the date of this order. See Rule 3.1320(j) of the California Rules of Court (CRC).
3. Should Mr. Chen voluntarily elect to amend the Complaint, the parties may confer on a date for such amendment and the timing of Oracle's responsive pleading.
4. The Court shall issue the order after hearing.

19. 9:00 AM CASE NUMBER: N25-1906

CASE NAME: JONATHAN DUNCKEL VS. RUSSELL VACARRO

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ATTORNEY FEES**

FILED BY: DUNCKEL, JONATHAN R

TENTATIVE RULING:

Petitioner Jonathan Dunckel ("Petitioner") filed a motion for an award of attorneys' fees and costs on December 17, 2025 ("Motion for Fees and Costs"). The Motion for Fees and Costs was set for hearing on May 11, 2026. No response has been filed by respondent Russel Vacarro ("Respondent").

Background

Petitioner brings this Motion for Fees and Costs after prevailing on a Request for Civil Harassment Restraining Order filed September 25, 2025. After a hearing conducted on December 3, 2025, the Court entered its Civil Harassment Restraining Order against Respondent, the restrained party.

Analysis

The Court may, in its discretion, award court costs and attorneys' fees to the prevailing party in a civil harassment restraining order proceeding. Code Civ. Proc. § 527.6(s) ("**The prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any.**") (Emphasis added); *Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802 (the decision whether to award attorney fees to a prevailing party in a civil harassment restraining order is "**a matter committed to the discretion of the trial court.**") (Emphasis added) [Construing former Code of Civil Procedure section 527.6(i) which was substantially identical in all pertinent language to the current Code of Civil Procedure section 527.6(s)].

The trial court has broad authority to determine the amount of a reasonable fee. *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1329. The trial court is under no obligation to award the full extent of fees claimed by the prevailing party and may, for example, reduce a fee award where it finds certain claimed fees were inefficient or duplicative. *Id.* at 1330.

No proof of service has been filed showing service of the motion on Respondent.

Moreover, the caption page of the Motion for Fees and Costs reflects hearing information for "DEPT:

9” and “JUDGE: Devine,” the former department and assigned judge. **This matter has been reassigned for purposes to Department 34.** No amended notice of motion appears of record on the docket.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is CONTINUED to **June 29, 2026, 9:00 a.m.**, in **Department 34** of the Court.
2. Petitioner to give notice and file proof of service on Respondent of such amended notice and the underlying motion papers.

20. 9:00 AM CASE NUMBER: N25-2269

CASE NAME: PETITION OF: ELAINE LAVAN

***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF DEFENDANT'S ANSWER**

FILED BY: LAVAN, ELAINE

TENTATIVE RULING:

Petitioner’s motion to strike portions of California State Approving Agency for Veterans Education’s answer is **granted as to affirmative defenses one and three with leave to amend, and otherwise the motion is denied.** CSAAVE may file and serve an amended answer within 10 days of notice of entry of this order.

CSAAVE’s answer included four affirmative defenses: (1) Failure to Mitigate, (2) Laches, (3) Waiver and Estoppel, and (4) Unclean Hands. Petitioner filed this motion to strike the affirmative defenses. Petitioner’s argument is that these affirmative defenses are unsupported by factual allegations, which is really an argument for a demurrer to an affirmative defense. (See, e.g. *Corrigan v. Stiltz* (1965) 233 Cal.App.2d 381, 386.) CSAAVE opposed this motion on the merits and thus, waived this procedural defect.

To the extent Petitioner is seeking to strike the affirmative defenses as irrelevant, false or improper, the Court denies that request.

The main issue here is whether CSAAVE has sufficiently pled its affirmative defenses. Generally, an answer must allege some facts to support the affirmative defenses. (See *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 384; see also *Walsh v. West Valley Mission Community College Dist.* (1998) 66 Cal. App. 4th 1532, 1546.) Although facts need not be alleged when bringing an affirmative defense based upon the statute of limitations. (Code of Civil Procedure section 458.)

In the first affirmative defense, CSAAVE alleges a failure to mitigate damages based upon the following facts: “Petitioner failed to take reasonable steps or make a reasonable effort to mitigate her disapproval of her application and any claimed damages, if any, as a result of such denial.” In their opposition CSAAVE explains what efforts Petitioner could have taken, however, those facts are not alleged here. Therefore, the Court grants the motion to strike the first affirmative defense with leave to amend.